

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

In the matter of the claim of
ERIC VIA,

Petitioner,

PETITION

— against —

INDEX NO.:

CITY OF NEW YORK,

Respondent.

NEIL WOLLERSTEIN, an attorney duly admitted to practice before the Courts in the State of New York hereby affirms the truth for the following statements under the penalties of perjury.

1. I am the attorney for Petitioner **ERIC VIA** (“**MR. VIA**”), in the above entitled action, and as such I am familiar with the facts and circumstances hereinafter contained, the source of my knowledge being the file maintained by my office in the course of handling this action.

2. This Petition is respectfully submitted in support of the within Order to Show Cause requesting this Honorable Court grant Petitioner leave to file his Notice of Claim *nunc pro tunc* upon Respondent, **CITY OF NEW YORK** (“Respondent”) pursuant to General Municipal Law § 50-e(5).

3. No prior application for the relief sought herein has been made.

4. Attached hereto as **Exhibit “A”** is a copy of **MR. VIA’S** Notice of Claim which was duly served on Respondent on 8/9/21.

5. The claim herein is for false arrest, false imprisonment, abuse of process, assault, battery, negligent hiring and supervision and civil rights violations arising out of the unlawful arrest of **MR. VIA** on 9/11/20 within the vicinity of White Plains Road and East 228th Street, Bronx, New York.

6. At the aforesaid time and place, Respondent, their agents, servants, and employees, assaulted, battered, falsely arrested, detained and confined **MR. VIA** without probable cause or reasonable cause.

7. Annexed hereto as **Exhibit "B"** is an affidavit of merit duly executed by **MR. VIA** which explains the facts and circumstances surrounding his arrest.

ARGUMENT

THIS HONORABLE COURT SHOULD GRANT MR. VIA'S APPLICATION FOR LEAVE TO FILE A LATE NOTICE OF CLAIM *NUNC PRO TUNC* UPON RESPONDENT PURSUANT TO GENERAL MUNICIPAL LAW § 50-e(5).

8. This Honorable Court should grant **MR. VIA'S** application for leave to file a late notice of claim *nunc pro tunc* upon Respondent pursuant to General Municipal Law § 50-e(5) as leave is sought within one year and 90 days of accrual of **MR. VIA'S** claim herein.

9. It is well settled that the factors the court must consider when determining to allow service of a late notice of claim are whether: "[1] the movant demonstrated a reasonable excuse for the failure to serve the notice of claim within the statutory time frame, [2] whether the municipality acquired actual notice of the essential facts of the claim within 90 days after the claim arose or a reasonable time thereafter, and [3] whether the delay would substantially prejudice the municipality in its defense." Matter of Dubowy v. City of New York, 305 A.D.2d 320, 759 N.Y.S.2d 325 (1st Dept. 2003).

10. Additionally, it is well settled that, “the presence or absence of any one factor, including the absence of a reasonable excuse, is not necessarily fatal” Matter of Chambers v. Nassau Cty. Health Care Corp., 50 A.D.3d 1134, 857 N.Y.S.2d 222, 224 (2nd Dept. 2008). Furthermore, courts have liberally construed General Municipal Law § 50-e to allow a claim to be heard on its merits. See Matter of Schiffman v. City of New York, 19 A.D.3d 206, 797 N.Y.S.2d 450 (1st Dept. 2005).

A. MR. VIA Has Demonstrated A Reasonable Excuse For Failing To Serve The Notice Of Claim Within The Required Statutory Time Frame.

11. **MR. VIA** have proffered a reasonable excuse for failing to serve the notice of claim within the required statutory time frame of General Municipal Law § 50-e(1)(a) that being 90 days from the time of accrual.

12. **MR. VIA** informs your affirmant that at the time his criminal case was pending and thereafter dismissed, no one informed him, including his attorney who represented him at that time, that he had a potential claim against the City of New York and the NYPD and was required to file a notice of claim to preserve his rights within 90 days of his release from detention. Had **MR. VIA** known of this possible action, and the strict time requirements for filing a notice of claim, he would have spoken to another lawyer and vigorously pursued any possible claim. This, despite the fear of retaliation from the arresting officers and the NYPD in general.

13. Under the above circumstances, **MR. VIA’S** actions or lack thereof for failing to file a notice of claim within the allotted statutory period is reasonable.

14. Even if this Honorable Court determines that the excuse proffered by **MR. VIA** is not reasonable, as indicated above, such a finding is not fatal to the application herein. See Dubowy, supra; Chambers, supra; See also Semyonova v. New York City Housing Authority, 15

A.D.3d 181, 789 N.Y.S.2d 38 (1st Dept. 2005); Weiss v. City of New York, 237 A.D.2d 212, 655 N.Y.S.2d 34 (1st Dept. 1997)

B. Respondent Acquired Actual Notice Of The Essential Facts Of MR. VIA'S Claim Within A Timely Fashion And Within A Reasonable Time Thereafter.

(i) Respondent acquired actual notice of the essential facts.

15. The Respondent herein acquired actual notice of the essential facts of **MR. VIA'S** claim within the statutory frame work because multiple members of the NYPD participated in the underlying acts giving rise to the claim herein and those officers filed reports with regard to their conduct. See Ansong v. City of New York, 308 A.D.2d 333 (1st Dept. 2003) (holding that “respondent’s claimed lack of knowledge is completely refuted by the fact that the officers who allegedly assaulted petitioner would, as respondent’s employees, have had immediate knowledge of the events giving rise to this dispute” and “respondent’s claim of prejudice is similarly meritless since police and criminal court records pertaining to petitioner’s arrest, as well as the favorable disposition of charges against him, are presumably still in existence”); Ragland v. New York City Housing Authority, 201 A.D.2d 7, 613, N.Y.S.2d 937, 940 (2nd Dept. 1994) (“Where . . . members of the municipality’s police department participate in the acts giving rise to the claim, and reports and complaints have been filed by the police, the municipality will be held to have actual notice of the essential facts of the claim.”);

16. Your affirmant further directs this Honorable Court to the case of Matter of Schiffman v. City of New York, 19 A.D.3d 206, 797 N.Y.S.2d 450 (1st Dept. 2005) wherein petitioner filed an application for a late notice of claim. Said application was denied. Id.

17. In reversing the lower court the First Department held that the motion court abused its discretion by denying the application. The Appellate Court stated:

This case involved the police's actions in response to an alleged assault and ensuing civilian struggle. As such, the City acquired notice of the essential facts based upon the facts that police were called to the scene and were directly involved in all aspects of the claims Such knowledge is documented in the individual officers' memo books and official Police Department reports.

18. Here, as in Schiffman and Ragland, the Respondent acquired notice of the essential facts as the NYPD was the agency responsible for arrest and detention of **MR. VIA**. In addition, it cannot be denied that the NYPD officers filed official arrest reports, filled out memobooks, filed UF-61 reports, and signed affidavits under penalty of perjury which would be required for a criminal court complaint. The aforesaid documents are in the custody of the NYPD and as such provide not only the essential facts but almost all the facts relating to the instant claim against Respondent.

(ii) Even if Respondent did not have notice of the essential facts they obtained notice within a reasonable time thereafter.

19. Respondent in the instant matter certainly had notice of the essential facts within a reasonable time after the statutory period.

20. Your affirrant acknowledges that **MR. VIA'S** claim for false imprisonment and other related claims at issue herein such as assault, battery, abuse of process, negligent hiring, training, and retention, began to run at the time of his release from detention which was on or about 9/12/20. See Palmer v. City of New York, 226 A.D.2d 149, 640 N.Y.S.2d 92 (1st Dept. 1996). As such, the time frame expired on or about 12/12/20. However, due to the statute of limitations being tolled from 3/20/20 to 11/3/20 as per Executive Order No. 202.72 issued by the Governor, the time frame was extended until 2/3/21. Considering the notice of claim was filed on 8/9/21, said notice of claim was *approximately six (6) months* late and filed within a "reasonable

time thereafter.” See Pearson v. NYCHHC, 43 A.D.3d 92, 840 N.Y.S.2d 25 (1st Dept. 2007) (6 month delay reasonable).

21. It should also not go unnoticed by this Honorable Court and it is emphasized herein that **MR. VIA’S** claim for false imprisonment and other related claims were filed within the 1 year and 90 day statute of limitations. Historically, the Courts have liberally construed General Municipal Law § 50-e to allow claims to be heard on their merits. See Matter of Schiffman, *supra*.

C. MR. VIA’S Delay Does Not Substantially Prejudice Respondent In Defending The Claim.

22. Once again, petitioner brings to the Court’s attention that due to the following tolling provisions in the recent Executive Orders issued by the Governor, **MR. VIA’S** delay in filing a timely notice of claim does not substantially prejudice Respondent ability to defend or investigate the claim herein. As indicated above, Respondent had notice of the facts giving rise to **MR. VIA’S** claims within the statute of limitations. Moreover, the NYPD is in possession of reports and records relating to the instant matter and most importantly the delay in filing the notice of claim with regard to the false imprisonment and false arrest claim is that they are within a reasonable time frame that being *approximately six (6) months*.

23. It should also be noted that attached hereto as **Exhibit “C”** is a duly executed authorization to unseal the criminal file as related to this incident. This will certainly alleviate any claim of prejudice by the Respondent.

24. In sum, the delay of *approximately six (6) months* respectively as to **MR. VIA’S** claims herein as indicated above, which at the very least were reasonable, has not impeded any investigation or inquiry by Respondent that will rise to substantial prejudice.

WHEREFORE, it is respectfully requested that this Court grant **MR. VIA'S** leave to file a Notice of Claim *nunc pro tunc* along with such other and further relief as this Court may deem just, proper and equitable.

Date: Bronx, New York
December 3, 2021

Respectfully Submitted,

NEIL WOLLERSTEIN

Attorney for Petitioner

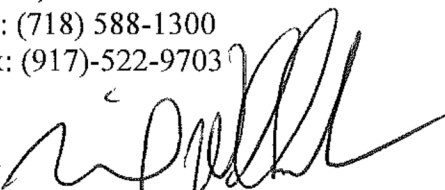
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BY



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